

24LBCV01050 24LBCV01050

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-09

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Case Number: 24LBCV01050 Hearing Date: July 9, 2026 Dept: S27

Defendant moves for terminating

sanctions based on Plaintiff's failure to prosecute the action. Specifically, Defendant moves pursuant to CCP §583.420(a)(2) and CRC 3.1340, which collectively permit the Court, in its discretion, to dismiss an action that has not been brought to trial within two years of filing.

Defendant provides evidence that

the case has been called for trial on 12 occasions, and each time Plaintiff's attorney has announced "not ready" to prosecute the action. This is sufficient to meet Defendant's burden to show the Court should exercise its discretion and grant the motion. Notably, the Court set the hearing on the motion on 5/13/26 in light of Plaintiff's attorney's repeated inability to proceed with trial of the action.

Any opposition to the motion was

due on or before 6/25/26. CCP

§1005(b). Plaintiff has not filed timely

opposition to the motion, and the Court will not consider late-filed opposition. In light of the lack of opposition, the motion is granted.

Plaintiff's case against Defendant

is dismissed. The FSC and trial dates

are vacated. Defendant is ordered to

prepare a judgment of dismissal for processing.

Defendant is ordered to give notice.